

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 4170

By: Staires

AS INTRODUCED

An Act relating to crimes and punishments; amending 21 O.S. 2021, Section 1722, as amended by Section 255, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1722), which relates to the taking of crude oil or gasoline; making certain acts unlawful; providing penalty; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 21 O.S. 2021, Section 1722, as amended by Section 255, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1722), is amended to read as follows:

Section 1722. A. Any person who shall unlawfully take any crude oil or gasoline, or any product thereof, from any pipe, pipeline, tank, tank car, or other receptacle or container and any person who shall unlawfully take or cause to be taken any machinery, drilling mud, pipes, fittings, pumps, and all other equipment or ~~other~~ materials necessary for the drilling or production of oil or gas wells, with intent to deprive the owner or lessee thereof of said crude oil, gas, gasoline, or any product thereof, machinery, drilling mud, pipes, fittings, pumps, and all other equipment or

1 ~~other~~ materials necessary for the drilling or production of oil or
2 gas wells shall:

3 1. Be guilty of a misdemeanor if the value of said product so
4 taken is less than One Thousand Dollars (\$1,000.00), and upon
5 conviction thereof, shall be punished by a fine of not more than
6 Five Hundred Dollars (\$500.00), or by imprisonment in the county
7 jail for a term not to exceed sixty (60) days, or by both such fine
8 and imprisonment; and

9 2. Be guilty of a Class C2 felony offense if the value of such
10 product so taken is One Thousand Dollars (\$1,000.00) or more and
11 upon conviction thereof, shall be punished by forfeiture of the
12 instrumentality of the crime and by a fine of not less than One
13 Hundred Dollars (\$100.00), and not more than Fifty Thousand Dollars
14 (\$50,000.00), or by imprisonment in the ~~State Penitentiary~~ custody
15 of the Department of Corrections for a term in the range of one (1)
16 year to ten (10) years, or by both such fine and imprisonment.

17 B. Any person violating the provisions of this section who:

18 1. Takes such product and causes environmental damage to the
19 real property as a direct result of the taking of such product; and

20 2. The direct costs of remediation or restoration of the
21 environmentally damaged real property exceeds the amount of Two
22 Thousand Five Hundred Dollars (\$2,500.00), shall, upon conviction,
23 be guilty of a felony.
24

SECTION 2. This act shall become effective November 1, 2026.

60-2-15815 GRS 01/10/26